

Sneha Laxman Bhingare vs Laxman Vilasrao Bhingare on 17 June, 2022

Author: R.G. Avachat

Bench: R.G. Avachat

20-SA.279-2022.odt

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD

SECOND APPEAL NO.279 OF 2022

Sneha w/o. Laxman Bhingare
Vs.
Laxman s/o. Vilasrao Bhingare

..Appellant
..Respondents

Mr.Sachin Deshmukh, Advocate for appellants
Mr.Shaikh Majit Sardar, Advocate for respondent

CORAM : R.G. AVACHAT, J.
DATE : JUNE 17, 2022

ORDER :

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Heard.

2. The appellant-wife filed a petition for dissolution of marriage on the ground of cruelty. The trial Court negatived her claim. She, therefore, preferred a first appeal. She has been unsuccessful therein. She is, therefore, before this Court in Second Appeal.

3. Both appellant-wife and respondent-husband inter-se have now moved a joint motion for decree of dissolution of marriage by mutual consent.

4. Original Record and Proceedings is not before this Court. The same is required since the parties have to amend the main 2 20-SA.279-2022 petition so as to convert the same into one under Section 13-B of the Hindu Marriage Act.

5. The terms of compromise have been verified before the Section Officer of this Court. This Court enquired with both appellant-wife and respondent-husband, who are present in Court, regarding the terms of compromise. Both of them reiterated the same. The wife claims to have given up her

claim for maintenance as she has been gainfully employed. In view of the same, this Court endorses the terms of compromise with a view to grant a decree of dissolution of marriage by consent of the parties. The decree, therefore, be drawn in those terms, provided the Record and Proceedings is brought before this Court and the main petition is converted into the petition under Section 13-B of the Hindu Marriage Act.

6. Call Record and Proceedings. Humdast allowed.

7. Stand over to 08.07.2022.

[R.G. AVACHAT, J.] KBP